

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101
San Luis Obispo, California 93401**

**WASTE DISCHARGE AND WATER RECLAMATION REQUIREMENTS
ORDER NO. R3-2005-0133**

Waste Discharger Identification No. 3 42 011 8001

FOR

**LOS ALAMOS COMMUNITY SERVICES DISTRICT
WASTEWATER TREATMENT AND DISPOSAL FACILITIES
SANTA BARBARA COUNTY**

The California Regional Water Quality Control Board, Central Coast Region (Central Coast Water Board), finds that:

FACILITY OWNER AND LOCATION

1. The Los Alamos Community Services District (hereafter "Discharger") owns and operates a wastewater collection, treatment, and disposal system approximately one mile northwest of the unincorporated town of Los Alamos. The facilities are shown in Attachment A.

serves as storage prior to the wastewater's use for reclamation in the adjacent 29.6-acre spray-irrigation area.

Design and Current Capacity

PURPOSE OF ORDER

2. On March 18, 2005, the Discharger submitted a Report of Waste Discharge (ROWD) for authorization to continue discharging treated wastewater within the San Antonio Creek sub-basin. The ROWD requested authorization to add 18 acres to its current spray-irrigation disposal area. The existing Waste Discharge Requirements (WDR), Order No. 92-93, require updating due to the proposed expansion of the designated disposal area. The Central Coast Water Board has regulated this discharge since July 12, 1985.

4. The treatment facility design capacity is 400,000 gallons per day (gpd). The existing 29.6-acre spray-irrigation area design capacity is 135,000 gpd for average dry-weather flow, and 176,000 gpd average wet-weather flow.

5. Based on the Los Alamos Community Plan (February 15, 1994), build out of Los Alamos will require 225,000 gpd of capacity (average wet weather flow). The Discharger has acquired 23 acres of additional land (currently undeveloped open space) to ensure the community's future wastewater disposal needs. The Discharger proposes to use 18 acres of this additional land for spray irrigation. The existing treatment facility is already designed for build-out conditions.

FACILITY DESCRIPTION

Treatment Facility

3. The treatment facility consists of a lift station, bar screen and comminutor (headworks), and two lined, mechanically aerated oxidation ponds. The treated wastewater is transferred to an evaporation/percolation pond, which also

SITE DESCRIPTION

Geographic Setting & Geology

6. Subsurface soils underlying the site consist of alluvial deposits (sands and sandy gravels interbedded with occasional clay layers) to 90 feet deep. Beneath the alluvium lies the Paso Robles Formation, which extends to 600 feet

deep. A low-permeability layer perches the shallow groundwater at approximately 30 feet deep.

Surface Water

7. The San Antonio Creek is over one mile south of the treatment and disposal sites and flows in a westerly direction. The site is outside of the 100-year flood plain.

Groundwater

8. The Discharger supplies water to the community from two wells, 510 feet and 535 feet deep, respectively, located over one and one-half miles upgradient from the disposal area (shown on Attachment A).
9. The facilities are located within the San Antonio Creek sub-basin as designated in the Basin Plan. The median groundwater quality objectives for the sub-basin are as follows:

Constituent	Median Groundwater Quality Objective (mg/L)
Total Dissolved Solids	600
Sodium	100
Chloride	150
Sulfate	150
Boron	0.2
Nitrogen	5

BASIN PLAN

10. The Water Quality Control Plan, Central Coast Basin (Basin Plan) incorporates statewide plans and policies by reference and contains a strategy for protecting beneficial uses of State Waters. This Order implements the Basin Plan.
11. Present and anticipated beneficial uses of groundwater near the discharge include:
 - a) Domestic and municipal water supply;
 - b) Agricultural water supply; and,
 - c) Industrial water supply.

12. Present and anticipated beneficial uses of San Antonio Creek that could be affected by the discharge include:

- a) Municipal and Domestic Supply;
- b) Agricultural Water Supply;
- c) Groundwater Recharge;
- d) Water Contact Recreation;
- e) Non-Contact Water Recreation;
- f) Wildlife Habitat;
- g) Warm Freshwater Habitat;

RECLAIMED WATER

12. The Discharger proposes to continue using reclaimed water to spray irrigate pasture land.
13. Basin Plan section II.A.2.a states that where wastewater effluents are returned to land for irrigation uses, regulatory controls shall be consistent with Title 22 of the California Code of Regulations (the State Department of Health Services' criteria for using reclaimed water) and other relevant local controls.
14. The Central Coast Water Board consulted with the State Department of Health Services regarding the regulation of this discharge. The waste is an oxidized, undisinfected wastewater suitable for irrigation of fodder and fiber crops.

MONITORING PROGRAM

15. Monitoring and Reporting Program (MRP) No. R3-2005-0133 is a part of the proposed Order. The MRP requires routine water supply, influent, effluent, biosolids, and facility monitoring to verify compliance and ensure protection of groundwater quality.
16. Monitoring reports are due monthly by the first day of the second month following sampling. An annual report summarizing the previous calendar year's events and monitoring is due by February 1st each year.

ENVIRONMENTAL ASSESSMENT

17. The Discharger adopted a Mitigated Negative Declaration (MND) for the expanded spray

irrigation area on August 27, 2003 (SCH # 2002061137), in accordance with the California Environmental Quality Act (Public Resources Code, Section 21000, et seq.) and the California Code of Regulations. The MND found that the project will not have a significant effect on the environment, with no mitigation measures necessary in relation to the wastewater discharge. The Regional Board has reviewed the MND and concurs that the expansion of the irrigation area will not have a significant adverse impact on the environment.

18. With the exception of the expanded irrigation area, these waste discharge requirements are for an existing treatment and disposal facility and are exempt from the provisions of the California Environmental Quality Act (Public Resources Code, Section 21000, et. seq.) in accordance with Title 14 of the California Code of Regulations, Division 6, Chapter 3, Article 19, Section 15301.
19. The State Board established California's anti-degradation policy in State Board Resolution No. 68-16, which incorporates the requirements of the federal anti-degradation policy. Resolution 68-16 requires that existing quality of waters be maintained unless degradation is justified based on specific findings. The permitted discharge is consistent with State Board Resolution No. 68-16.

Total Maximum Daily Load

20. Total maximum daily load (TMDL) allocations will be developed for impaired surface waters in the Central Coast Region. TMDL documents will allocate responsibility for constituent loading throughout the watershed. If TMDL's determine constituent contributions from waste discharged may adversely impact beneficial uses or exceed water quality objectives, changes in these Waste Discharge Requirements may be required. Waste Discharge Requirements may be modified to implement applicable TMDL provisions and recommendations.

EXISTING ORDERS/GENERAL FINDINGS

21. The Central Coast Water Board previously regulated the discharge from the existing treatment and disposal facilities under Waste Discharge Requirements Order No. 92-93, adopted on November 13, 1992.
22. Discharge of waste is a privilege, not a right, and authorization to discharge is conditional upon the discharge complying with provisions of Division 7 of the California Water Code and any more stringent effluent limitations necessary to implement water quality control plans, to protect beneficial uses, and to prevent nuisance.
23. On October 3, 2005, the Regional Board notified the Discharger and known interested parties of its intent to reissue waste discharge requirements for the discharge and has provided them with a copy of the proposed Order and an opportunity to submit written views and comments.
24. After considering all comments pertaining to this discharge during a public hearing on December 2, 2005, the Central Coast Water Board found this Order consistent with the above findings.
25. Any person affected by this action of the Board may petition the State Water Board to review the action in accordance with Section 13320 of the California Water Code and Title 23 of the California Code of Regulations, Section 2050. The State Water Board must receive the petition within 30 days of the adoption date of this Order. Copies of the law and regulations applicable to filing petitions are available at:

<http://www.waterboards.ca.gov/wqpetitions/index.html>,

or will be provided upon request.

IT IS HEREBY ORDERED, pursuant to authority in Sections 13263 and 13267 of the California Water Code, that the Los Alamos Community Services District, its agents,

successors, and assigns, may discharge waste at the above-described facilities providing compliance is maintained with the following:

[Note: Some footnotes are listed to indicate the source of requirements specified. Requirement footnotes are as follows (requirements without footnotes are BPJ unless otherwise noted):

BP	Central Coast Regional Water Quality Control Plan
T22	Title 22 CCR, Division 4, Chapter 3, Water Reclamation Criteria
PC	Porter-Cologne Water Quality Control Act (California Water Code)]

Other prohibitions and conditions, definitions, and the methods of determining compliance are contained in the attached "Standard Provisions and Reporting Requirements for Waste Discharge Requirements" dated January 1984. Applicable paragraphs are referenced in paragraph G.4 of this Order.

As provided by California Water Code Section 13350(a), any person may be civilly liable if that person in violation of a waiver condition or waste discharge requirements, discharges waste, or causes waste to be deposited where it is discharged, into the waters of the State.

A. DISCHARGE PROHIBITIONS

1. Discharge of treated wastewater to areas other than disposal areas shown in Attachment A is prohibited.
2. Discharge of any wastes including overflow, bypass, seepage, collection system spills or overflows, or from transport, treatment, storage, or disposal systems to San Antonio Creek, adjacent drainageways, or adjacent properties is prohibited.
3. Bypass of the treatment facilities and discharge of untreated or partially treated wastes directly to the designated disposal areas or other areas is prohibited.^{PC}
4. Discharge of sludges, residues, or any other wastes into surface waters or into any area

where it may be washed into surface water is prohibited.^{PC}

5. Discharge of any waste, except in compliance with this Order or other applicable waste discharge requirements, is prohibited.

B. DISCHARGE SPECIFICATIONS

1. Daily flow averaged over each month shall not exceed 225,000 gallons.
2. Surface drainage shall be excluded from disposal areas.
3. Freeboard shall exceed two feet in all disposal/storage ponds and one foot in all treatment ponds.
4. Discharge shall not occur within 100 feet of any well, except that no irrigation with, or impoundment of, undisinfected secondary recycled water shall take place within 150 feet of any domestic water supply well.^{T22}

C. GROUNDWATER LIMITATIONS

1. The discharge shall not cause a statistically significant increase of nitrate concentrations in the groundwater affected by disposal activities.
2. The discharge shall not cause groundwaters to contain taste- or odor-producing substances in concentrations that adversely affect beneficial uses.^{BP}
3. The discharge shall not cause a statistically significant increase of mineral or organic constituent concentrations in underlying groundwater, as determined by statistical analysis of samples collected from wells upgradient and downgradient of the disposal area.
4. The discharge shall not cause groundwater to:
 - a) exceed the Primary Maximum Contaminant Levels for organic chemicals set forth in the California Code of Regulations, Title 22,

Division 4, Chapter 15, Article 5.5, Section 64444.^{BP}

22, Division 4, Chapter 15, Article 5, Section 64443.^{BP}

- b) exceed the Primary Maximum Contaminant Levels for inorganic chemicals set forth in the California Code of Regulations, Title 22, Division 4, Chapter 15, Article 4, Section 64431 (formerly 64435).^{BP}
- c) exceed the levels for radionuclides set forth in the California Code of Regulations, Title

- 5. The discharge shall not cause radionuclides to be present in groundwater in concentrations that are deleterious to human, plant, animal, or aquatic life, or result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.^{BP}

D. RECLAMATION REQUIREMENTS

- 1. Reclaimed water shall not contain constituents in excess of the following:

Constituent	Units	Monthly Mean	Daily Maximum
Biochemical Oxygen Demand (BOD ₅)	mg/L	80	120
Total Suspended Solids (TSS)	mg/L	80	120
Total Dissolved Solids (TDS)	mg/L	Water Supply + 300	850
Settleable Solids	mL/L	0.3	0.5
Sodium	mg/L	Water Supply + 70	200
Chloride	mg/L	Water Supply + 50	200

- 2. Reclaimed water shall not have a pH less than 6.5 or greater than 8.4.^{BP}
- 3. Delivery of reclaimed water to the disposal area shall cease during any period the Discharger cannot comply with its water reclamation requirements. Use of reclaimed water may resume when the Discharger can once again comply with its water reclamation requirements.
- 4. Spray irrigation of reclaimed water shall be accomplished at a time and in a manner that minimizes ponding and the possibility of public contact with sprayed materials.
- 5. All reclamation reservoirs and other areas with public access shall be posted (in English and Spanish) to warn the public that reclaimed wastewater is being stored or used.
- 6. Personnel involved in producing, transporting, or using reclaimed water shall be informed of possible health hazards that may result from contact and use of reclaimed water.
- 7. Tank trucks used for transporting reclaimed water shall be appropriately labeled and shall not leak.
- 8. Valves in the reclaimed water irrigation system shall be designed and constructed so unauthorized persons cannot open them.
- 9. Proper backflow and cross-connection protection for domestic water services and irrigation wells shall be provided.
- 10. Reclaimed water systems shall be properly labeled and regularly inspected to ensure proper operation, absence of leaks, and absence of illegal connections.
- 11. Wastewater application rates shall be consistent with accepted engineering practice.
- 12. Any irrigation runoff shall be confined to the reclaimed water use area, unless the runoff does not pose a public health threat and is authorized by the Central Coast Water Board.^{T22}

13. No spray irrigation shall take place within 100 feet of a residence or a place where public exposure could be similar to that of a park, playground, or school yard.^{T22}
14. The Discharger's facility shall be provided with a sufficient number of qualified personnel to operate the facility effectively to achieve the required level of treatment at all times.^{T22}
15. Qualified personnel shall be those meeting requirements established pursuant to Chapter 9 (commencing with Section 13625) of the Water Code.^{T22}

E. SLUDGE/BIOSOLIDS MANAGEMENT

General Sludge Management Provisions

1. Sludge (the solid, semisolid, and liquid residues removed during primary, secondary, or advanced wastewater treatment processes) and solid waste (grit and/or screening material generated during preliminary treatment) shall be removed from wastewater treatment facilities as needed to ensure optimal facility operation.
2. Treatment and storage of sludge shall be confined to the site and conducted in a manner that precludes infiltration of waste constituents into soils in a mass or concentration that will violate Groundwater Limitations.
3. Any storage of sludge and solid waste shall be temporary and controlled and contained in a manner that minimizes leachate formation and precludes infiltration of waste constituents into soils in a mass or concentration that will violate Groundwater Limitations.
4. Sludge and solid waste shall be disposed of in a manner approved by the Executive Officer and consistent with Title 27, Division 2 of the California Code of Regulations. Removal for further treatment, disposal, or reuse at sites (i.e., landfill, composting sites, soil amendment sites) operated in accordance with valid waste discharge requirements issued by a regional water quality control board will satisfy this specification.
5. Use of biosolids (sludge that has been treated and tested and shown to be capable of being

beneficially and legally used pursuant to federal and state regulations as a soil amendment for agriculture, silviculture, horticulture, and land reclamation activities) as a soil amendment shall comply with valid waste discharge requirements issued by a regional water quality control board. In most cases, this will mean the General Biosolids Order (SWRCB Water Quality Order No. 2004-0010-DWQ, *General Waste Discharge Requirements for the Discharge of Biosolids to Land for Use as a Soil Amendment in Agricultural, Silvicultural, Horticultural, and Land Reclamation Activities*). For a biosolids use project to be covered by the General Biosolids Order, the Discharger must file a complete Notice of Intent and receive a Notice of Applicability for each project according to the Order's requirements.

Biosolids that are not dewatered or stabilized through treatment are not eligible for regulation under the General Biosolids Order.

6. Use and disposal of biosolids shall comply with the self-implementing federal regulations of Title 40 of the Code of Federal Regulations, Part 503, which are subject to enforcement by the U.S. Environmental Protection Agency, not the Central Coast Water Board. If during the life of this Order the State accepts primacy for implementation of 40 CFR 503, the Central Coast Water Board may also initiate enforcement where appropriate.

U.S. EPA Region IX Biosolids Management Provisions

(Note: Language in this section was provided by the U.S. EPA for use in waste discharge requirements for treatment works treating domestic sewage. For the purpose of the following provisions, "Biosolids" refers to non-hazardous sewage sludge, defined in 40 CFR 503.9 as, "Solid, semi-solid, or liquid residue generated during the treatment of domestic sewage in a treatment works. Sewage sludge includes, but is not limited to, domestic septage; scum or solids removed in primary, secondary, or advanced wastewater treatment processes; and a material derived from sewage sludge. Sewage sludge does not include ash generated during the firing of sewage sludge in a sewage sludge incinerator or

grit and screenings generated during preliminary treatment of domestic sewage in a treatment works.”

7. Management of all solids and sludge must comply with all requirements of CFR Parts 257, 258, 501, and 503, including all monitoring, record-keeping, and reporting requirements. Since the State of California, hence the Regional and State Boards, has not been delegated the authority by the EPA to implement the biosolids program, enforcement of biosolids requirements of CFR Part 503 will occur under EPA's jurisdiction at this time.

8. All biosolids generated by the Discharger shall be used or disposed of in compliance with the applicable portions of:

- a. 40 CFR 503: for biosolids which are land applied (placed on the land for the purpose of providing nutrients or conditioning the soil for crops or vegetation), placed in surface disposal sites (placed on the land at dedicated land disposal sites or monofills for the purpose of disposal), stored, or incinerated;
- b. 40 CFR 258: for biosolids disposed in municipal solid waste landfills; and,
- c. 40 CFR 257: for all biosolids use and disposal practices not covered under 40 CFR 258 or 503.

40 CFR 503 Subpart B (land application) applies to biosolids applied for enhancing plant growth or for land reclamation. 40 CFR 503 Subpart C (surface disposal) applies to biosolids placed on the land for the purpose of disposal. The Discharger has used surface disposal sludge management techniques to date.

The Discharger is responsible for ensuring that all biosolids produced at its facility are used or disposed of in compliance with these regulations, whether the Discharger uses or disposes of the biosolids itself or transfers them to another party for further treatment, use, or disposal. The Discharger is

responsible for informing subsequent preparers, applicers, and disposers of the requirements that they must meet under 40 CFR 257, 258, and 503.

9. The Discharger shall take all reasonable steps to prevent or minimize any biosolids use or disposal in violation of applicable regulations and/or which has a likelihood of adversely affecting human health or the environment.
10. No biosolids shall be allowed to enter wetlands or other waters of the United States.
11. Biosolids treatment, storage, use, or disposal shall not contaminate groundwater.
12. Biosolids treatment, storage, use, or disposal shall not create a nuisance such as objectionable odors or flies.
13. The Discharger shall assure that haulers transporting biosolids off site for treatment, storage, use, or disposal take all necessary measures to keep the biosolids contained.
14. If biosolids are stored for over two years from the time they are generated, the Discharger must ensure compliance with all the requirements for surface disposal under 40 CFR 503 Subpart C, or must submit a written notification to EPA with the information in Section 503.20(b), demonstrating the need for longer temporary storage.
15. Any biosolids treatment, disposal, or storage site shall have facilities adequate to divert surface runoff from adjacent areas, to protect the site boundaries from erosion, and to prevent any conditions that would cause drainage from the materials at the site to escape from the site. Adequate protection is defined as protection from at least a 100-year storm and from the highest tidal stage that may occur.
16. The discharge of biosolids shall not cause waste material to be in a position where it is, or can be, conveyed from the treatment and storage sites and deposited in the waters of the State.

17. Where applicable, the Discharger shall design its pretreatment program local discharge limitations to achieve the metals concentration limits in 40 CFR 503.13 Table 3. At the time of this Order's adoption, the Discharger was not required to have a pretreatment program.
18. Inspection and Entry: An authorized representative of the EPA or Central Coast Water Board, upon the presentation of credentials, shall be allowed by the Discharger, directly or through contractual arrangements with their biosolids management contractors, to:
 - a. Enter upon all premises where biosolids produced by the Discharger are treated, stored, used, or disposed, either by the Discharger or by another party to whom the Discharger transfers the biosolids for treatment, storage, use, or disposal;
 - b. Have access to and copy any records that must be kept under the conditions of this permit or of 40 CFR 503, by the Discharger or by another party to whom the Discharger transfers the biosolids for further treatment, storage, use, or disposal, and;
 - c. Inspect any facilities, equipment (including monitoring and control equipment), practices, or operations used in the biosolids treatment, storage, use, or disposal by the Discharger or by another party to whom the Discharger transfers the biosolids for treatment, storage, use, or disposal.
19. Monitoring shall be conducted in accordance with the Monitoring and Reporting Program (MRP) of this Order (see MRP Section *Sludge/Biosolids Monitoring*).
20. All the requirements of 40 CFR 503 are enforceable by the U.S. EPA. All the requirements of Title 23 CCR, Division 3, Chapter 15, and Title 27 CCR, Division 2 are enforceable by the Central Coast Water Board. The above requirements are enforceable whether or not the requirements are stated in

waste discharge requirements or any other permit issued to the Discharger.

21. Sewage sludge that is hazardous as defined in 40 CFR 261 must be disposed in accordance with the Resource Conservation and Recovery Act (RCRA). Sludge with PCB levels greater than 50 mg/kg must be disposed in accordance with 40 CFR 761.

F. WASTEWATER COLLECTION SYSTEM MANAGEMENT

Wastewater Collection System Management Plan Development and Implementation

1. The Discharger shall develop and implement a Wastewater Collection System Management Plan (Management Plan) in accordance with the time schedule established in Monitoring and Reporting Program (MRP) Attachment No. 1, *Elements of the Wastewater Collection System Management Plan*. The Management Plan shall be available to any member of the public upon written request.
2. MRP Attachment No. 1 outlines the Management Plan elements for the Discharger's consideration. The Discharger's Management Plan shall clearly address and label all Management Plan elements outlined in MRP Attachment No. 1. If any Management Plan element is not appropriate or applicable to a Discharger's collection system, then the Management Plan shall provide the rationale for not including the element.
3. To facilitate continuity between the Discharger's existing wastewater collection system programs and the development and implementation of the Management Plan, the Management Plan shall incorporate within the appropriate sections, but not be limited to, the Discharger's existing wastewater collection system programs and the Wastewater Collection System Overflow Prevention and Response and Infiltration/Inflow and Spill Prevention requirements below. Wherever appropriate, the Discharger is encouraged to use its existing programs or practices to address the Management Plan elements.

Wastewater Collection System Overflow
Prevention and Response

4. The Discharger is prohibited from discharging chlorine, or any other toxic substance used for disinfection and cleanup of sewage overflows, to any surface water body (Note: This prohibition does not apply to the chlorine already present in the potable water used for final wash down and clean up of overflows.). The Discharger shall take all reasonable steps to contain and prevent chlorine discharges to surface waters and minimize or correct any adverse impact on the environment resulting from the cleanup of overflows.

The Discharger shall develop a monitoring program to evaluate the effectiveness of overflow cleanup protocols for protecting public health and the environment. Minimum protocols should include visual observation, sample collection, and sampling data analyses. The monitoring program shall be developed in coordination with the Central Coast Water Board and the Santa Barbara County Health Department, as appropriate. The Discharger shall submit a proposed monitoring program to the Executive Officer by July 1, 2006, and the program shall be subject to the Executive Officer's approval.

5. The Discharger shall make every reasonable effort to prevent sewage overflows from its wastewater collection system and private systems from entering storm drains and/or surface water bodies. The Discharger shall also make every reasonable effort to prevent sewage and/or chlorine used for disinfection of overflows from discharging from storm drains into flood control channels and open ditches by blocking the storm drainage system and by removing the sewage and/or chlorine from the storm drains.
6. Upon reduction, loss, or failure of the wastewater collection system resulting in a sewage overflow, the Discharger shall, to the extent necessary to maintain compliance with this Order, take any necessary remedial action to:

- a. Control or limit the volume of sewage discharged;
 - b. Terminate the sewage discharge as rapidly as possible, and;
 - c. Recover as much of the sewage discharged as possible for proper disposal, including any wash-down water.
7. The Discharger shall implement all remedial actions to the extent they may be applicable to the discharge, including the following:
- a. Interception and rerouting of sewage flows around the sewage line failure;
 - b. Vacuum truck recovery of wastewater collection system overflows and wash down water;
 - c. Cleanup of debris of sewage origin at the overflow site;
 - d. Sample affected receiving water body to ensure adequate clean-up, and;
 - e. Submit monitoring data to the Executive Officer within 30 days of any sampling.
8. The discharge of untreated or partially treated sewage is prohibited pursuant to Central Coast Water Board Standard Provisions, Prohibition A.4, and shall constitute a violation of these discharge requirements unless the Discharger demonstrates through properly signed, contemporaneous operating logs, or other relevant evidence that the following criteria are met:
- a. The discharge was caused by one or more severe natural conditions, including hurricanes, tornadoes, widespread flooding, earthquakes, tsunamis, and other similar natural conditions, and;
 - b. There were no feasible alternatives to the discharge, such as the use of auxiliary treatment facilities, retention of untreated wastewater, reduction of inflow and

infiltration, use of adequate backup equipment, or an increase in the capacity of the system. This provision is not satisfied if, in the exercise of reasonable engineering judgment, the Discharger should have installed auxiliary or additional collection system components, wastewater retention or treatment facilities, or adequate back-up equipment, or should have reduced inflow and infiltration.

9. In any enforcement action, the Central Coast Water Board will consider the efforts of the Discharger to contain, control, and clean up sewage overflows from its collection system as part of the Board's consideration of the factors required by Section 13327 of the California Water Code.

Infiltration/Inflow and Spill Prevention Measures

10. The Discharger shall continue to develop and implement infiltration, inflow, and spill prevention efforts to address problems associated with infiltration (e.g., groundwater entering into the collection system through defective pipe joints or connections to manholes), inflow (e.g., storm water entering manhole covers) and sewage spills (often caused by grease or root blockages). The Discharger shall review and update these activities as necessary by September 1st of every year, and shall incorporate them into the Wastewater Collection System Management Plan as required by this Order, and as outlined in MRP Attachment No. 1. [See Sections IV.(E) and IX.(A) of MRP Attachment No.1 for Infiltration/Inflow-related requirements.]
 11. Infiltration, inflow, and spill prevention measures shall be developed in accordance with good engineering practices and shall address the following objectives:
 - a. Identify infiltration and inflow sources that may affect treatment facility operation or possibly result in overflow or exceed pump station capacity; and,
 - b. Identify, assign, and implement spill prevention measures and collection system management practices to ensure overflows and the contribution of pollutants (including illicit contributions) or "incompatible wastes" to the Discharger's treatment system are minimized.
- #### G. PROVISIONS
1. Order No. 92-93, *Waste Discharge Requirements and Water Reclamation Requirements for Los Alamos Community Services District, Santa Barbara County*, adopted by the Central Coast Water Board on November 13, 1992, is hereby rescinded.
 2. The Discharger shall comply with "Monitoring and Reporting Program (MRP) No. R3-2005-0133, as specified by the Executive Officer. The Executive Officer is authorized to revise the Monitoring and Reporting Program at any time while this Order is active.
 3. All technical and monitoring reports submitted pursuant to this Order are required pursuant to Section 13267 of the California Water Code. The technical and monitoring reports are necessary to determine compliance with the requirements of this Order and to determine the discharge's effect, if any, on receiving waters. Evidence in support of these requirements may be found in the Discharger's ROWD and the Regional Board's files related to the Discharger's facilities. Failure to submit reports in accordance with schedules established by this Order, attachments to this Order, or failure to submit a report of sufficient technical quality acceptable to the Executive Officer, may subject the Discharger to enforcement action pursuant to Section 13268 of the California Water Code.
 4. The Discharger shall comply with all applicable items of the attached *Standard Provisions and Reporting Requirements for Waste Discharge Requirements*, dated January 1984, except C.2 and C.4.
 5. Physical facilities shall be designed and constructed according to accepted engineering

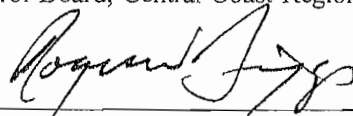
practices and shall be capable of full compliance with this Order when properly operated and maintained. Operation and maintenance of the wastewater system shall conform to the Discharger's Operations and Maintenance Plan, which shall be periodically reviewed, and, if appropriate, revised. The Operations and Maintenance Plan is subject to review by the Executive Officer, who shall be provided a current copy within ten days of any significant revision.

6. **By August 1, 2006**, the Discharger shall submit a technical report describing the locations and complete details of groundwater monitoring wells installed and monitored to measure compliance with the Groundwater Limitations of this Order and to comply with Sludge/Biosolids Monitoring. The Executive Officer shall determine any appropriate changes to the Monitoring and Reporting Program.
7. This Order may be reopened to address any changes in state or federal plans, policies, or regulations that may affect the discharge regulated by this Order.
8. Changes or modification to the Discharger's facilities may require a Report of Waste Discharge submittal and update of these Waste Discharge Requirements. Given a material change in the character, location, or volume of

the discharge, the Discharger shall file a Report of Waste Discharge in accordance with Title 23, Chapter 3, Subchapter 9 of the California Administrative Code. Material changes warranting submittal of a Report of Waste Discharge include, but are not limited to, the following:

- a) Addition of a major industrial waste discharge to a discharge of essentially domestic sewage, or the addition of a new process or product by an industrial facility resulting in a change in the character of the waste.
- b) Significant change in disposal method, e.g., change from a land disposal to a direct discharge to water, or change in the method of treatment which would significantly alter the characteristics of the waste.
- c) Significant change in the disposal area, e.g., moving the discharge to another drainage area, to a different water body, or to a disposal area significantly removed from the original area potentially causing different water quality or nuisance problems.
- d) Increase in flow beyond that specified in the waste discharge requirements.

I, **Roger W. Briggs, Executive Officer**, do hereby certify the foregoing is a full, true, and correct copy of an order adopted by the California Regional Water Quality Control Board, Central Coast Region, on December 2, 2005.



Roger W. Briggs, Executive Officer

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION**

MONITORING AND REPORTING PROGRAM NO. R3-2005-0133

FOR

**LOS ALAMOS COMMUNITY SERVICES DISTRICT
SANTA BARBARA COUNTY**

Water Supply Monitoring

Representative samples of the community water supply shall be collected and analyzed as follows:

Table 1 – Water Supply Monitoring

Constituent	Units	Type of sample	Sampling Frequency
Total Dissolved Solids	mg/L	Grab	Semi-annually (in April and October)
Sodium	mg/L	Grab	Semi-annually (in April and October)
Chloride	mg/L	Grab	Semi-annually (in April and October)

Influent Flow and Freeboard Monitoring

Influent to the wastewater treatment facility and pond freeboard shall be monitored as follows:

Table 2 – Influent Flow and Freeboard Monitoring

Parameter	Units	Type of sample	Sampling Frequency
Daily Flow	Gallons per Day (gpd)	Metered	Daily
Maximum Daily Flow	gpd	Observed	Monthly
Mean Daily Flow	gpd	Calculated	Monthly
Pond Freeboard	Feet	Measured	Weekly

Effluent Monitoring

Representative samples of the effluent discharged to the spray irrigation area shall be collected and analyzed for the following constituents:

Table 3 – Effluent Monitoring

Constituents	Units	Type of sample	Sampling Frequency
Biochemical Oxygen Demand, 5-day (BOD ₅)	mg/L	Grab	Weekly
Total Suspended Solids	mg/L	Grab	Weekly
Settleable Solids	mL/L	Grab	Weekly
pH	--	Grab	Weekly
Total Dissolved Solids	mg/L	Grab	Quarterly (in Jan., Apr., July, Oct.)
Sodium	mg/L	Grab	Quarterly (in Jan., Apr., July, Oct.)
Chloride	mg/L	Grab	Quarterly (in Jan., Apr., July, Oct.)

Sludge/Biosolids Monitoring

Biosolids Sampling and Analysis

1. Biosolids resulting from the Discharger's treatment processes and ready for ultimate disposal shall be sampled and analyzed as specified below. These requirements apply to the Discharger's current surface disposal practices. If those practices change (e.g., to land disposal), other requirements may apply. This section was provided by the U.S. EPA for waste discharge requirements for treatment works treating domestic sewage, and was derived from applicable portions of 40 CFR 503. Where any discrepancies may exist between this section and 40 CFR 503, the latter will prevail unless otherwise indicated by the Executive Officer.

A representative sample of biosolids as obtained from the last point in the handling process shall be analyzed for the constituents and at the frequencies discussed below. A minimum of twelve (12) discrete samples shall be collected at separate locations. These discrete samples shall be composited to form one (1) sample for parameter analysis.

Biosolids shall be tested for the metals referred to in 40 CFR 503.26 (for surface disposal; arsenic, nickel, and chromium), using the methods in *Test Methods for Evaluating Solid Waste, Physical/Chemical Methods* (EPA Publication SW-846, all applicable editions and updates), as required in 40 CFR 503.8(b)(4).

According to 40 CFR 503.26, the minimum sampling frequency for facilities using surface disposal is:

Table 4 – Minimum Biosolids Sampling Frequency

Amount ^{1,3} (dry metric tons per 365-day period)	Frequency ²
Greater than zero but less than 290	once per year

¹ For Surface Disposal: Amount of biosolids / sewage sludge placed on an active sewage sludge unit (dry weight basis).

² Test results shall be expressed in mg pollutant per kg biosolids on a 100% dry weight basis.

³ More frequent sampling required if amount exceeds 290 dry metric tons per 365-day period.

Because the Discharger expects to dispose of biosolids once every six to ten years, sampling shall be conducted at least once during the years when disposal occurs (prior to actual disposal).

Table 5 – Biosolids Monitoring

Parameter	Units	Minimum Frequency of Sampling/Analysis
Quantity Removed	Tons and yd ³	As Disposed
Pathogen Density	---	per 40 CFR 503
Vector Attraction	---	per 40 CFR 503
Arsenic	mg/kg	Once each year of disposal
Chromium (Hexavalent)	mg/kg	Once each year of disposal
Nickel	mg/kg	Once each year of disposal
Total Kjeldahl Nitrogen	mg/kg	Once each year of disposal
Ammonia (expressed as nitrogen)	mg/kg	Once each year of disposal
Nitrate (expressed as nitrogen)	mg/kg	Once each year of disposal
pH	---	Once each year of disposal

2. Prior to disposal in a surface disposal site, the Discharger shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day.

3. For biosolids that are placed in a surface disposal site, the Discharger shall track and keep records of the operational parameters used to achieve Vector Attraction Reduction requirements in 40 CFR 503.33(b).
4. For biosolids placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater monitoring program for the site, or shall certify that the placement of biosolids on the site will not contaminate an aquifer.

Biosolids Notification

5. The Discharger, either directly or through contractual arrangements with their biosolids management contractors, shall comply with the following notification requirements:
 - a. Notification of non-compliance: The Discharger shall notify EPA Region 9, the Central Coast Water Board, and the Regional Board located in the region where the biosolids are used or disposed (e.g., if biosolids are transferred to another region for disposal), of any non-compliance within 24 hours if the non-compliance may seriously endanger health or the environment.

For other instances of non-compliance, the Discharger shall notify EPA Region 9 and the affected Regional Boards of the non-compliance in writing within five working days of becoming aware of the non-compliance. The Discharger shall require their biosolids management contractors to notify EPA Region 9 and the affected Regional Boards of any non-compliance within the same time frames. Please contact Central Coast Water Board staff contact information for other California Regional Water Boards.
 - b. If biosolids are shipped to another State or to Indian Lands, the Discharger must send notice at least 60 days prior to the shipment to the permitting authorities in the receiving State or Indian Land (the EPA Regional Office for that area and the State/Indian authorities).
 - c. For surface disposal: Prior to disposal to a new or previously unreported site, the Discharger shall notify EPA and the Central Coast Water Board. The notice shall include description and topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator, site owner, and any state or local permits. The notice shall describe procedures for ensuring public access and grazing restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.

Biosolids Reporting

6. For each calendar year in which the Discharger disposes of biosolids, the Discharger shall submit a biosolids report to the EPA Region 9 Biosolids Coordinator and the Central Coast Water Board by **February 19th of the following year**^{BPI}. The report shall include:
 - a. The amount of biosolids generated during the reporting period, in dry metric tons, and its percent solids, and the amount accumulated from previous years;
 - b. Results of all pollutant and pathogen monitoring required in this Order and Monitoring and Reporting Program, whether directly stated or included by reference. Results must be reported on a 100% dry weight basis for comparison with 40 CFR 503 limits;
 - c. Descriptions of pathogen reduction methods and vector attraction reduction methods, including supporting time and temperature data, and certifications, as required in 40 CFR 503.17 and 503.27;

- d. Names, mailing addresses, and street addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, or for other use or disposal methods not covered above, and amounts delivered to each.
- e. For surface disposal sites other than the Discharger's facilities:
 - The names and locations of the facilities receiving biosolids, site operator, site owner, size of parcel on which disposed;
 - Results of any required groundwater monitoring;
 - The Regional Board's Waste Discharge Requirements Order numbers that regulate the landfills used (including those in other regions which may receive biosolids from your facility);
 - The present classifications of the landfills used;
 - Certifications of management practices in Section 503.24; and
 - For closed sites, date of site closure and certifications of management practices for the three years following site closure.
- f. For all biosolids used or disposed at the Discharger's facilities, the site and management practice information and certification required in Sections 503.17 and 503.27; and
- g. For all biosolids temporarily stored, the information required in Section 503.20 required to demonstrate temporary storage;
- h. A schematic diagram showing biosolids handling facilities (e.g., digesters, lagoons, drying beds, and incinerators) and a solids flow diagram;
- i. A narrative description of biosolids dewatering and other treatment processes, including process parameters. For example, if biosolids are digested, report average temperature and retention time of the digesters. If drying beds are used, report depth of application and drying time. If composting is used, report the temperature achieved and duration.
- j. Reports shall be submitted to:

Regional Biosolids Coordinator
US EPA (WTR-7)
75 Hawthorne St.
San Francisco, CA 94105-3901

Executive Officer
Central Coast Regional Water Quality Control Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

Spray Irrigation Area Monitoring

The Discharger shall inspect spray irrigation areas at least three days per week. During extended wet-weather periods, the Discharger shall make more frequent inspections as needed. The Discharger shall discuss the compliance status with Order No. R3-2005-0133, particularly with the prohibitions and reclamation requirements of the Order.

A log of these inspections shall be maintained, and copies of the log entries pertaining to the monitoring period shall be included with the applicable monitoring report. The monitoring report shall also include the dates and times that effluent was applied to the spray irrigation area, and estimated wastewater volumes reclaimed during each month. Evidence of non-compliance shall be reported to the Executive Officer with 24 hours of discovery. The conditions shall be promptly investigated and remedied.

Wastewater Collection System Overflows – Recordkeeping

1. The Discharger shall retain applicable records of all overflows, including, but not limited to:
 - a. All original strip chart recordings for continuous monitoring instrumentation;
 - b. Service call records and complaint logs of calls received by the Discharger;
 - c. Spill calls;
 - d. Spill records;
 - e. Copies of all reports required by this Order;
 - f. The location of the sewage overflow and respective receiving waters, if any (nearest street address and/or Global Positioning System (GPS) coordinates);
 - g. An estimate of the volume of the overflow;
 - h. A description of the sewer system component from which the release occurred (e.g., manhole, constructed overflow pipe, crack in pipe, etc);
 - i. The estimated date and time when the overflow began, when it stopped, and when the cleanup was completed;
 - j. The cause or suspected cause of the overflow;
 - k. Steps that have been and will be taken to prevent the overflow from recurring, and a schedule to implement those steps;
 - l. Documentation from the previous three years associated with responses and investigations of system problems related to sanitary sewer overflows at the overflow location;
 - m. A list and description of complaints from customers or others from the previous three years;
 - n. Documentation of performance and implementation measures for the previous three years; and,
 - o. Observations of affected waterbodies for evidence of adverse impacts to water quality such as fish kills or materials of sewage origin.
2. If sampling and monitoring are conducted of any overflow, records of monitoring information shall include:
 - a. The date, exact place, and time of sampling or measurements;
 - b. The individual(s) who performed the sampling or measurements;
 - c. The date(s) analyses performed;
 - d. The individual(s) who performed the analyses;
 - e. The laboratory that conducted the analyses;
 - f. The analytical technique or method used; and,
 - g. The results of such analysis.
3. If samples are collected, monitoring results must be reported on discharge monitoring report forms approved by the Executive Officer.

4. Records shall be maintained by the Discharger for a minimum of five years from the date of the sample, measurement, report, or application. This period may be extended during the course of any unresolved litigation regarding a discharge or when requested by the Central Coast Water Board Executive Officer.
5. All monitoring instruments and devices that are used by the Discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.

Wastewater Collection System Overflows – Reporting

1. Reporting Overflows to the Central Coast Water Board

- a. Sewage spills greater than 1,000 gallons and/or all sewage spills that enter a waterbody of the State, or occur where public contact is likely, regardless of the size, shall be reported to the Central Coast Water Board by telephone as soon as notification is possible and can be provided without substantially impeding cleanup or other emergency measures, and no later than 24 hours from the time that the Discharger has knowledge of the overflow.
- b. Unless fully contained, overflows to storm drains or other conveyances tributary to waters of the State shall be reported as discharges to surface waters.
- c. A written report of all relevant information shall be submitted to the Central Coast Water Board within five days of the spill, and shall include no less information than is required on the current spill reporting form (see Monitoring and Reporting Program Attachment No. 2), or equivalent, as approved by the Central Coast Water Board Executive Officer. Attachments to the report should be used as appropriate, and incidents requiring more time than the five-day period must be followed by periodic written status reports until issue closure. Photographs taken during the overflow incident and cleanup shall be submitted to the Central Coast Water Board in color hard copy and electronic format.
- d. When samples are collected, sampling points upstream and downstream of the point of discharge to the receiving water should be analyzed for total and fecal coliforms, enterococcus, Total Kjeldahl Nitrogen, and BOD₅. Upstream and downstream sampling results shall be submitted to the Central Coast Water Board Executive Officer within 30 days.
- e. Spills under 1,000 gallons that do not enter a waterbody shall be reported to the Central Coast Water Board in writing and electronically (Excel spreadsheet preferred) within 30 days. Such reports shall include, at a minimum, a tabular summary of spill dates, locations, volumes, whether the spill discharged to surface waters (including conveyances thereto) or land, whether cleanup and/or disinfection was performed, the spill's cause, the number of spills at the location in the last three years, and weather conditions.

This requirement is subject to revision by the Central Coast Water Board Executive Officer.

Contact Information:

Central Coast Regional Water Quality Control Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906
Ph: (805) 549-3147
FAX: (805) 543-0397

2. Reporting Overflows to the Governor's Office of Emergency Services

Per the Governor's Office of Emergency Services (OES) 2002 Fact Sheet regarding the reporting of sewage releases (as revised or updated), the California Water Code, commencing with Section 13271, requires that a discharge of sewage into or onto State waters must be reported to OES.

To report sewage releases of 1,000 gallons or more (currently the federal reportable quantity used by OES) to OES, verbally notify the OES Warning Center at:

(800) 852-7550, or (916) 845-8911.

The reportable quantity is subject to revision by the State of California. OES reporting requirements for sewage releases and hazardous materials can be located on the OES Website at www.oes.ca.gov in the California Hazardous Material Spill/Release Notification Guidance. **The OES Hazardous Materials Unit staff is available for questions at (916) 845-8741.**

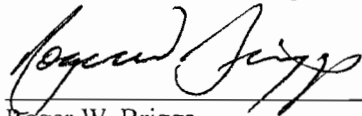
OES Reporting Exceptions: Notification to OES of an unauthorized discharge of sewage or hazardous substances is not required if: 1) the discharge to State waters is a result of a cleanup or emergency response by a public agency; 2) the discharge occurs on land only and does not affect State waters; or 3) the discharge is in compliance with applicable waste discharge requirements. These exceptions apply only to the Discharger's responsibility to report to OES, and do not alter the Central Coast Water Board's reporting policies or waste discharge requirements.

Self-Monitoring Reports

Reports shall be submitted monthly by the 1st day of the second month following sampling (e.g., data collected in January is due no later than March 1st) under an appropriate report transmittal form (MRP Attachment No. 3) subject to the Executive Officer's approval. The Discharger shall submit an annual report according to Standard Provision C.16, which is hereby due no later than February 1st each year (not January 30th, as stated in the provision).

In the event of a wastewater collection, treatment, and/or disposal system failure or impending failure, the Executive Officer and the County Environmental Health Department shall be notified immediately. In the event of failure, the area shall be posted to prevent public contact with domestic wastewater.

Data in the annual report shall also be submitted in electronic format (standard Excel spreadsheet preferred for data, 3-1/2 inch disk, compact disk, or other media staff may approve).



Roger W. Briggs
Executive Officer

12-7-05
Date

ELEMENTS OF THE WASTEWATER COLLECTION SYSTEM MANAGEMENT PLAN

In accordance with Order Section F, *Wastewater Collection System Management*, the Discharger is encouraged to use its existing programs or practices to address the Management Plan elements listed below. Where the Discharger determines that an element does not apply to its collection system, the Discharger shall provide in the appropriate section of its Management Plan the rationale for omitting the element.

- I. **Goals:** The goal of the Wastewater Collection System Management Plan is to prevent overflows and to provide a plan and schedule for implementation of measures to prevent overflows.
- II. **Organization:** The Wastewater Collection System Management Plan must identify the following components:
 - A. Administrative and maintenance positions responsible for implementing measures in the Wastewater Collection System Management Plan program, including lines of authority by organization chart or similar document; and
 - B. The chain of communication for reporting overflows, from receipt of a complaint or other information, including the person responsible for reporting overflows to the Regional Water Quality Control Board, Santa Barbara County Health Department, and the State Office of Emergency Services (OES).
- III. **Legal Authority:** The Wastewater Collection System Management Plan shall include or make reference to legal authority, through sewer use ordinances, service agreements, or other legally binding procedures, to:
 - A. Control infiltration and connections from inflow sources, including satellite systems;
 - B. Require that sewers and connections be properly designed and constructed;
 - C. Ensure proper installation, testing, and inspection of new and rehabilitated sewers (such as new or rehabilitated collector sewers and new or rehabilitated service laterals within the Permittee's jurisdiction); and,
 - D. Limit fats and greases and other debris that may cause blockages in the collection system.
- IV. **Measures and Activities:** In order to reduce overflows, the Wastewater Collection System Management Plan must address the elements listed below that are appropriate and applicable to the Permittee's system and identify the person or position in the organization responsible for each element.
 - A. Provide adequate operation and maintenance of facilities and equipment.
 - B. Maintain an up-to-date map of the collection system showing all gravity line segments and manholes, pumping facilities, pressure pipes and valves, and storm water conveyance facilities.
 - C. Maintain relevant information to establish and prioritize appropriate Wastewater Collection System Management Plan activities (such as the immediate elimination of dry weather overflows or overflows into sensitive waters, such as public drinking water supplies and their source waters, swimming beaches and waters where swimming occurs, shellfish growing areas, waters within Federal, State, or local parks, and water containing threatened or endangered species or their habitats), and identify and illustrate trends in overflows, such as frequency and volume.

- D. Routine preventive operation and maintenance activities by staff and contractors; including a system for scheduling regular maintenance and cleaning of the collection system with more frequent cleaning and maintenance targeted at known problem areas as well as a tracking system for work orders.
- E. Identify and prioritize structural deficiencies and implement short-term and long-term rehabilitation actions to address each deficiency. This shall include a rehabilitation plan including schedules for the entire system. As with the preventative maintenance program, sewer rehabilitation and replacement is crucial for the prevention of spills. Among the provisions that should be specified in this section is the need to direct rehabilitation and replacement of sewer pipes which are at risk of collapse or prone to more frequent blockages due to pipe defects. The plan should also include regular visual and video inspection of sewer pipes and a system for assessing and ranking the condition of sewer pipes. Finally, the rehabilitation and replacement plan should include a financial plan that properly manages and protects the infrastructure assets.
- F. Provide training on a regular basis for staff in collection system operations, maintenance, and monitoring, and determine if contractors' staffs are appropriately trained (e.g., through performance standards in contracts, proper licensing, or other recognized means of demonstrating appropriate competency).
- G. Provision of equipment and replacement parts inventories, including identification of critical replacement parts.
- H. Establish an implementation plan and schedule for a public education outreach program that promotes proper disposal of grease and fats.
- I. Establish a plan for responding to overflows from private property that discharge to public right-of-ways and storm drains, to prevent discharges from overflows to surface waters and storm drains, to the extent the District has the jurisdiction to do so. For example, where the District has no jurisdiction over the public right-of-way or storm drain toward which an overflow is migrating or to which it is discharging, the plan may consist of reporting overflows to the appropriate authority for corrective action, directing property owners to the appropriate authorities, and advising property owners of the need to hire a private plumber.
- J. Develop a plan and a schedule for providing an analysis of alternative methods of disposal for grease and fats, and an implementation plan and schedule for providing adequate disposal capacity for grease and fats generated within the wastewater collection system service area. For example, this plan may include an evaluation of the feasibility of using sludge digesters at the Treatment Facility for grease disposal and treatment, recycling, rendering, and other disposal alternatives.
- K. Describe fiscal resources necessary to ensure system operation, including fee structure, fiscal resources, actual and projected five-year budget expenses for staffing, operation, capital improvement projects, and reserves.
- L. Describe staffing available to ensure system operation (identifying individuals and titles) including developing, implementing, and revising the Wastewater Collection System Management Plan. Include an organizational chart, duties, and training frequency.

V. Design and Performance Provisions

- A. Develop and/or adopt design and construction standards and specifications for the installation of new sewer systems, pump stations, and other appurtenances; and for rehabilitation and repair of existing sewer systems; and

- B. Develop and/or adopt procedures and standards for inspecting and testing the installation of new sewers, pumps, and other appurtenances, and for rehabilitation and repair projects.

VI. Monitoring, Measurement, and Plan Modifications

- A. Monitor the implementation and, where appropriate, measure the effectiveness of each element of the Wastewater Collection System Management Plan;
- B. Update program elements, as appropriate, based on monitoring or performance evaluations; and
- C. Modify the Wastewater Collection System Management Plan program, as appropriate, to keep it updated and accurate and available for audit at all times.

VII. Overflow Emergency Response Plan: The Permittee shall develop and implement an Overflow Emergency Response Plan that identifies measures to protect public health and the environment. At a minimum, this plan should provide for the following actions.

- A. Ensure proper notification procedures so that the primary responders are informed of all overflows in a timely manner (to the greatest extent possible).
- B. Ensure that all overflows are appropriately responded to, including ensuring that reports of overflows are immediately dispatched to appropriate personnel for investigation and appropriate response.
- C. Ensure immediate notification of health agencies and other impacted entities (e.g., water suppliers) of all overflows. The plan should provide for the reporting of overflows to the Central Coast Water Board, Santa Barbara County Health Department, and the State Office of Emergency Services (OES) in accordance with each agency's policy. The Wastewater Collection System Management Plan should identify the public health agency and other officials who will receive immediate notification.
- D. Ensure that appropriate staff and contractor personnel are aware of and follow the plan and are appropriately trained.
- E. Provide emergency operations, such as traffic and crowd control, and other necessary emergency response.
- F. Take all reasonable steps to contain sewage, prevent sewage discharges to surface waters, and minimize or correct any adverse impact on the environment resulting from the overflows, including such accelerated or additional monitoring as may be necessary to determine the nature and impact of the discharge.
- G. Develop and implement a plan to respond in a timely manner to spills and other emergencies. Collection system staff should be able to initiate a response to a sewage spill in less than an hour from the first call. The Permittee should be capable of meeting this response time day or night, every day of the week. The Permittee must own or have ready access to spill and emergency response equipment such as vacuum trucks, hydroflushers, pumps, temporary bypass hoses, and portable generators of adequate number and capacity to operate pump stations.
- H. Describe offsite and onsite alarm systems, response times, and methods for detecting spills from the system,

VIII. Source Control Program: Prepare and implement a grease, fat, and oil source control program to reduce the amount of these substances discharged to the wastewater collection system. This plan shall include the legal authority to prohibit discharges to the system and identify measures to prevent overflows caused by fat, oil, and grease blockages of sewers. The elements of an effective grease control program may include

requirements to install grease removal devices (such as traps or, preferably, interceptors), design standards for the removal devices, maintenance requirements, Best Management Practices (BMP) requirements, record keeping, and reporting requirements. An effective grease control program must also include authority to inspect grease producing facilities, enforcement authorities, and sufficient staff to inspect and enforce the grease ordinance. All source control and pretreatment activities shall be coordinated with the District.

- A. The grease control program shall identify sections of the wastewater collection system subject to grease blockages and establish a cleaning maintenance schedule for each section; and
- B. The program shall develop and implement source control measures, for all sources of grease and fats discharged to the wastewater collection system, for each section identified in (A) above.

IX. System Evaluation and Capacity Assurance Plan: Prepare and implement a capital improvement plan that will provide hydraulic capacity of key wastewater collection system elements under peak flow conditions. At a minimum, the plan must include:

- A. **System Evaluation** - Evaluate current capacity of the wastewater collection system, including any existing diversions of urban runoff to the collection system and those portions of the collection system which are experiencing or contributing to an overflow discharge caused by hydraulic deficiency. The evaluation must provide estimates of peak flows (including flows from overflows that escape from the system) associated with conditions similar to those causing overflow events, estimates of the capacity of key system components, hydraulic deficiencies (including components of the system with limiting capacity), and the major sources that contribute to the peak flows associated with overflow events;
- B. **Capacity Enhancement Measures** - Establish a short- and long-term capital improvement program to address deficiencies including prioritization, alternatives analysis, schedules, diversions of urban runoff to the wastewater collection system during dry weather periods, and control of infiltration and inflow during both wet weather events and dry weather periods; and
- C. **Plan Updates** - At a minimum, the plan must be updated annually to describe any significant change in proposed actions and/or implementation schedules. The updates should include available information on the performance of measures that have been implemented.

X. Annual Plan Updates: As part of the Wastewater Collection System Management Plan, the Permittee shall conduct an internal audit, appropriate to the size of the system and the number of overflows, and submit a report of such audit (in conjunction with the annual report specified in the MRP), evaluating the Wastewater Collection System Management Plan and its compliance with this subsection, including its deficiencies and steps to correct them.

- XI. Time Schedule / Communications:** The Permittee should communicate at least annually with interested parties such as the Central Coast Water Board and the Santa Barbara County Health Department, on the implementation and performance of its Wastewater Collection System Management Plan. The communication system should allow interested parties to provide input to the Permittee as the program is developed and implemented. The Permittee shall develop and implement the Wastewater Collection System Management Plan according to the following schedule:

Wastewater Collection System Management Plan Time Schedule

Task	Completion Date
Legal Authority (Part III)	December 1, 2006
Measures and Activities (Part IV)	December 1, 2006
Overflow Emergency Response Plan (Part VII)	December 1, 2006
Design and Performance Provisions (Part V)	April 1, 2007
Capacity Evaluation (Part IX)	April 1, 2007
Source Control Program (Part VIII)	December 1, 2007
Final Wastewater Collection System Management Plan	December 1, 2007

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
JANUARY, 1984
STANDARD PROVISIONS AND REPORTING REQUIREMENTS
for
WASTE DISCHARGE REQUIREMENTS

CONTENTS:

- A. [General Conditions](#)
- B. [General Monitoring Requirements](#)
- C. [General Reporting Requirements](#)
- D. [Bypasses or Upsets](#)
- E. [Enforcement](#)
- F. [Definitions](#) (Defines terms that appear in quotes)

A. General Permit Conditions:

Prohibitions:

1. Introduction of "incompatible wastes" to the treatment system is prohibited. (See F.9.)
2. Discharge of chemical and biological warfare agents is prohibited.
3. Discharge of "toxic wastes" is prohibited. (See F.18.)
4. Introduction of pollutants into the collection, treatment, or disposal system by an "indirect discharger" that:
 - a) inhibit or disrupt the treatment process, system operation, or the eventual use or disposal of sludge; or,
 - b) cause or "significantly contribute" to a violation of any requirement of this Order, is prohibited. (See F.17.)
5. Introduction of "pollutant-free" wastewater to the collection, treatment, and disposal system in amounts that threaten compliance with this order is prohibited. (See F.14.)

Provisions:

6. Production and use of reclaimed water shall conform with reclamation criteria established in Title 22, Chapter 3, of the California Code of Regulations. For uses of reclaimed water not addressed in Title 22 and not in the main body of this order, use is subject to review and dependent upon approval by the Executive Officer before use may begin (For uses addressed in Title 22, see C.8.).

7. Collection, treatment, and discharge of waste shall not create nuisance or pollution, as defined by Section 13050 of the California Water Code.
8. As necessary to assure safe and reliable collection, treatment, and disposal of waste and consistent compliance with this order, the discharger shall adopt and enforce a local source control program. (See C.16.)
9. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas.
10. The discharger shall prevent formation of a habitat for carriers of pathogenic microorganisms in any part of the treatment and disposal system.
11. Petroleum products, grease, and scum shall not be visible on disposal ponds.
12. Facilities and systems for collection, treatment, and control of wastewater shall be properly operated and maintained. Proper operation and maintenance includes effective performance, adequate funding, adequate operator staff and training, and adequate laboratory and process controls, including appropriate quality assurance procedures.
13. Transport and treatment facilities and permanent disposal ponds shall be adequately protected against overflow, flooding, or washout as the result of a 100-year frequency flood or 100-year, 24-hour storm.
14. All disposal areas shall be on land owned or controlled by the discharger.
15. Operation of collection, treatment, and disposal systems shall be in a manner that precludes public contact with wastewater.
16. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed in a manner approved by the Executive Officer.
17. Publicly owned wastewater treatment plants shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to Title 23 of the California Code of Regulations
18. The Regional Board shall be allowed:
 - a) entry upon premises where an effluent source is located or where records must be kept under the conditions of this order;
 - b) access to copy any records that must be kept under the conditions of this order;
 - c) to inspect any facility, equipment (including monitoring and control equipment), practices, or operations regulated or required under this order; and,

- d) to photograph, sample, and monitor for the purpose of showing compliance with this order.
- 19. After notice and opportunity for a hearing, this order may be terminated or modified for cause, including, but not limited to:
 - a) violation of any term or condition contained in this order;
 - b) obtaining this order by misrepresentation, or by failure to disclose fully all relevant facts;
 - c) a change in any condition or endangerment to human health or environment that requires a temporary or permanent reduction or elimination of the authorized discharge; and,
 - d) a material change in character, location, or volume of the discharge.
- 20. The order does not authorize commission of any act causing injury to the property of another, does not convey any property rights of any sort, does not remove liability under federal, state, or local laws, and does not guarantee a capacity right.
- 21. The discharger shall take all reasonable steps to minimize or correct adverse impacts on the environment resulting from noncompliance with this order.
- 22. Provisions of this order are severable. If any provision of the order is found invalid, the remainder of the order shall not be affected.
- 23. The discharger shall furnish, within a reasonable time, any information the Regional Board may request to determine compliance with this order or to determine whether cause exists for modifying or terminating this order.
- 24. Safeguards shall be provided to assure maximal compliance with all terms and conditions of this order. Safeguards shall include preventative and contingency plans and may also include alternative power sources, stand-by generators, retention capacity, operating procedures, or other precautions. Preventative and contingency plans for controlling and minimizing the effect of accidental discharges shall:
 - a) identify possible situations that could cause "upset", "overflow" or "bypass", or other noncompliance. (Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks, and pipes should be considered.)
 - b) evaluate the effectiveness of present facilities and procedures and describe procedures and steps to minimize or correct any adverse environmental impact resulting from noncompliance with the order.
- 25. Physical facilities shall be designed and constructed according to accepted engineering practice and shall be capable of full compliance with this order when properly operated

and maintained. Proper operation and maintenance shall be described in an Operation and Maintenance Manual. Facilities shall be accessible during the wet weather season.

26. Should additional data become available through monitoring or investigation that indicates compliance with this order is not adequately protecting ground water, the Regional Board will review and revise this order as appropriate.

B. General Monitoring Requirements:

1. Monitoring location, minimum sampling frequency, and sampling method for each parameter shall comply with the Monitoring and Reporting Program of this order. Monitoring must be conducted according to test procedures approved under 40 CFR Part 136, entitled "Guidelines Establishing Test Procedures for Analysis of Pollutants," unless other test procedures have been specified in this order.
2. If results of monitoring a pollutant appear to violate effluent limitations based on a weekly, monthly, 30-day, or six-month period, but compliance or non-compliance cannot be validated because sampling is too infrequent, the frequency of sampling must be increased to validate the test within the next monitoring period. The increased frequency must be maintained until the Executive Officer agrees the original monitoring frequency may be resumed.

For example, if suspended solids are monitored weekly and results exceed the weekly average numerical limit in the order, monitoring of suspended solids must be increased to at least four (4) samples every week (ref. paragraph F.1.).

3. Water quality analyses performed in order to monitor compliance with this order shall be by a laboratory certified by the State Department of Health Services for the constituent(s) being analyzed.
4. If the laboratory used or proposed for use by the discharger is not certified by the California Department of Health Services due to restrictions in the State's laboratory certification program, the discharger shall be considered in compliance with this provision provided:
 - a) Data results remain consistent with results of samples analyzed by the Regional Board;
 - b) A quality assurance program is used at the laboratory, including a manual containing steps followed in this program that is available for inspections by the staff of the Regional Board; and,
 - c) Certification is pursued in good faith and obtained as soon as possible after the program is reinstated.
5. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. Samples shall be taken during periods of peak loading conditions. Influent samples shall be samples collected from the combined flows of all incoming wastes, excluding recycled wastes. Effluent samples shall be samples collected downstream of the last treatment unit.

6. If any parameter is monitored at locations specified in the order more frequently than required and is analyzed using approved test procedures, the results shall be included in calculations and reports.
7. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.
8. The discharger shall maintain records of all monitoring information, including all calibration and maintenance records; all original strip chart recordings for continuous monitoring instrumentation; the date, exact place, and time of sampling; the individual who performed the sampling; the date analysis was performed; the laboratory and individual who performed the analysis; the analytical techniques used; and results. Records shall be maintained for a minimum of three years. This period may be extended during the course of any unresolved litigation or when requested by the Board.

C. General Reporting Requirements:

1. Monitoring results shall be reported at intervals and in a manner specified in the Monitoring and Reporting Program of this order.
2. Monitoring reports shall be submitted on State Water Resource Control Board Form Q2 or an acceptable alternate form. A master copy of the form will be supplied by the Regional Board upon request.
3. Any noncompliance that may endanger health or the environment shall be reported orally within 24 hours from the time the discharger becomes aware of the circumstances (telephone: 805-549-3147). Unless waived by the Executive Officer of the Regional Board, a written report shall be submitted within five (5) days of awareness and shall contain a description of the noncompliance and its cause; the period of noncompliance (including exact dates and times) or anticipated duration; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance. This provision includes, but is not limited to:
 - a) violation of a discharge prohibition;
 - b) any "upset", "overflow", or "bypass";
 - c) violation of a discharge limitation for any "hazardous substance."
4. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule shall be submitted within 14 days following each scheduled date unless otherwise specified within the order. If reporting non compliance, the report shall include a description of the reason, a description and schedule of tasks necessary to achieve compliance, and an estimated date for achieving full compliance. A second report shall be submitted within 14 days of full compliance.

5. All instances of noncompliance not reported under paragraph numbers C.3. and C.4., above, shall be submitted along with monitoring reports. The report shall contain the information listed in paragraph C.3.
6. Reports shall be submitted in advance of any planned changes in the permitted facility or activity that may result in noncompliance.
7. The "discharger" shall file a report of waste discharge or secure a waiver from the Executive Officer at least 120 days before making any material change or proposed change in the character, location, or volume of the discharge.
8. An engineering report as specified by Section 60323, Chapter 3, Title 22, of the California Code of Regulations is required, and written approval of the Executive Officer must be received by the discharger and user, before reclaimed water is supplied for any uses and to any users other than those enumerated in this Order.
9. Within 120 days after the discharger discovers, or is notified by the Regional Board, that monthly average daily flow will or may reach design capacity of waste treatment and/or disposal facilities within four (4) years, the discharger shall file a written report with the Regional Board. The report shall include:
 - a) the best estimate of when the monthly average daily dry weather a flow rate will equal or exceed design capacity; and,
 - b) a schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

In addition to complying with paragraphs C.14.c and C.15, the required technical report shall be prepared with public participation and reviewed, approved and jointly submitted by all planning and building departments having jurisdiction in the area served by the waste collection, treatment, or disposal facilities.

10. The "Discharger" shall submit reports to the:

California Regional Water
 Quality Control Board
 Central Coast Region
 895 Aerovista Place., Suite 101
 San Luis Obispo, CA 93401-7906

11. Transfer of control or ownership of a waste Discharge facility must be preceded by a notice to the Regional Board at least 30 days in advance of the proposed transfer date. The notice must include a written agreement between the existing discharger and proposed discharger containing specific date for transfer of responsibility, coverage, and liability between them. Whether an order may be transferred without modification and a public hearing is at the discretion of the board. If order modification is necessary, transfer may be delayed 120 days after the Regional Board's receipt of a complete Report of Waste Discharge.

12. Except for data determined to be confidential under Section 13267(b) of the California Water Code, all reports prepared in accordance with this order shall be available for public inspection at the office of the Regional Board.
13. Should the Discharger discover that it failed to submit any relevant facts or that it submitted incorrect information in a report, it shall promptly submit the missing or incorrect information.
14. All reports shall be signed as below:
 - a) For a corporation; by a principle executive officer of at least the level of vice president;
 - b) For a partnership or sole proprietorship; by a general partner or the proprietor, respectively;
 - c) For a public agency; by either a principal executive officer or ranking elected official; or,
 - d) Their "duly authorize] representative."

15. Any person signing a report makes the following certification, whether it is expressed or implied:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

16. By January 30 of each year, the discharger shall submit an annual report to the Regional Board. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. The Discharger shall discuss the compliance record and corrective actions taken, or which may be needed, to bring the discharger into full compliance. The report shall address operator certification and provide a list of current operating personnel and their grade of certification. The report shall inform the Board of the date of the Facility's Operation and Maintenance Manual (including contingency plans as described in Provision A.24 .), of the date the manual was last reviewed, and whether the manual is complete and valid for the current facility. The report shall restate, for the record, the laboratories used by the discharger to monitor compliance with effluent limits and provide a summary of performance relative to Section B, General Monitoring Requirements.

If the facility treats industrial or domestic wastewater and there is no provision for periodic sludge monitoring in the Monitoring and Reporting Program, the report shall include a summary of sludge quantities, analyses of its chemical and moisture content, and its ultimate destination.

If appropriate, the report shall also evaluate the effectiveness of the local source control or pretreatment program using the State Water Resources Control Board's "Guidelines for Determining the Effectiveness of Local Pretreatment Program."

17. The discharger must notify the Regional Board whenever there is a substantial change in the volume or character of pollutants being introduced into the wastewater system. Notice shall include information on the quality and quantity of waste being introduced to the system and the anticipated impact of the waste upon the quantity and quality of the aggregate discharge.
18. The discharger must notify the Regional Board as soon as it knows or has reason to believe that it or an indirect discharger has begun, or expects to begin, use or manufacture of a "toxic waste" or "hazardous substance" not reported in the Report of Waste Discharge that may, directly or indirectly, discharge into the treatment and disposal system.

D. Bypasses or Upsets

1. Bypass

- a) If the discharger knows in advance of the need for a "bypass", it shall submit notice to the Executive Officer at least 10 days before the "bypass".
- b) Enforcement action will be taken against the discharger for "bypass" unless:
 - (1) "Bypass" was unavoidable to prevent loss of life, personal injury, or "severe property damage";
 - (2) There was no feasible alternative to the "bypass," such as use of auxiliary treatment facilities, retention of untreated waste, or maintenance during normal periods of equipment downtime. (This condition is not satisfied if adequate back-up equipment could have been installed to prevent a "bypass" which occurred during normal periods of equipment down-time or preventive maintenance); and,
 - (3) The discharger submitted notice to the Executive Officer as specified in paragraphs C.3. and D.1.a., above.

2. Upset

A discharger seeking to establish the occurrence of an "upset" has the burden of proof. A discharger who wishes to establish the affirmative defense of "upset" shall demonstrate, through properly signed, contemporaneous operating logs or other relative evidence that:

- a) an "upset" occurred and the discharger can identify the specific cause(s) of the "upset"; and,

- b) the facility was at the time of "upset" being properly operated; the discharger submitted notice of "upset" within 24 hours; and the discharger took all reasonable steps to minimize or correct any adverse impact on the environment.

E. Enforcement:

1. The discharger must comply with all conditions of this order. Noncompliance violates state law and is grounds for enforcement action or modification of the existing order.
2. Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of section 13267 of the California Water Code, or falsifying any information provided therein, is guilty of a misdemeanor.
3. The discharger and any person who violates waste discharge requirements and/or who intentionally or negligently discharges waste or causes or permits waste to be deposited where it is discharged into surface waters of the state may be liable for civil and/or criminal remedies, as appropriate, pursuant to sections 13350, 13385, and 13387 of the California Water Code.
4. Upon reduction, loss, or failure of any part of the wastewater facility, the discharger shall, to the extent necessary to maintain compliance with this order, control production or all discharges, or both, until the facility is restored or an acceptable interim method of treatment or disposal is provided. Should enforcement action be brought against the discharger, the necessity to halt or reduce the permitted activity in order to obtain compliance with the conditions of this order shall not be a defense.

F. Definitions:

1. "Average" or "Mean" is the arithmetic mean of daily concentrations over the specified period in which "N" is the number of days samples were analyzed during the period and "X" is either the constituent concentration (mg/l) or flow for each sampled day. To be valid, "N" must be four or greater.
2. "Bypass" means the diversion of waste streams around any portion of a treatment facility to the disposal area or from the treatment facility to a nonauthorized location.
3. A "composite sample" is a combination of no fewer than eight (8) individual samples obtained at equal time intervals (usually hourly) over the specified sampling (composite) period. The volume of each individual sample is proportional to the flow rate at time of sampling. The period shall be specified in the Monitoring and Reporting Program ordered by the Executive Officer.
4. "Daily Discharge" means the discharge of a pollutant measured during a calendar day or during any 24-hour period reasonably representative of the calendar day for purposes of sampling.
5. "Daily Maximum" limit means the maximum acceptable concentration or mass emission rate of a pollutant measured during a calendar day or during any 24-hour period

reasonably representative of the calendar day for purposes of sampling. Its normally compared with results based on "composite samples".

6. "Duly Authorized Representative" is one where:
 - a) the authorization is made in writing by a person described in the signatory paragraph (C.14:a,b, or c) of this document;
 - b) the authorization specifies either an individual or the occupant of a position having responsibility for the overall operation of the regulated facility, such as the plant manager; and,
 - c) the written authorization was submitted to the Regional Board.
7. A "grab sample" is defined as any individual sample collected in less than 15 minutes. "Grab samples" shall be collected during peak loading conditions, which may or may not be during hydraulic peaks.
8. "Hazardous substance" means any substance designated as hazardous or extremely hazardous in sections 66680 or 66685 of the California Code of Regulations (Title 22, Division 4, Chapter 30, Article 9).
9. "Incompatible wastes" are:
 - a) Wastes which create a fire or explosion hazard in the treatment works;
 - b) Wastes which will cause corrosive structural damage to treatment works, including all wastes with a pH lower than 5.0 unless the works is specifically designed to accommodate such wastes;
 - c) Solid or viscous wastes in amounts which cause obstruction to flow in sewers, or which cause other interference with proper operation of treatment works;
 - d) Any waste, including oxygen demanding pollutants (BOD, etc.), released in such volume or strength as to cause inhibition or disruption in the treatment works and subsequent treatment process upset and loss of treatment efficiency; and,
 - e) Heat in amounts that inhibit or disrupt biological activity in the treatment works or that raise influent temperatures above 40°C (104°F) unless the treatment works is designed to accommodate such heat.
10. "Indirect Discharger" means a nondomestic discharger introducing pollutants into a publicly owned treatment and disposal system.
11. "Log Mean" is the geometric mean. Used for determining compliance of fecal or total coliform populations, it is calculated with the following equation:

$$\text{Log Mean} = (C_1 * C_2 * \dots * C_N)^{1/N}$$

in which "N" is the number of days samples were analyzed during the period and any "C" is the concentration of bacteria (MPN/100 ml) found on each day of sampling. To be valid, "N" must be five or more.

12. "Median" is the value below which half the samples (ranked progressively by increasing value) fall. It may be considered the middle value, or the average of two middle values. To be valid, three or more values are required.
13. "Overflow" means the intentional or unintentional diversion of flow from the collection and transport systems, including pumping facilities, and from disposal areas.
14. "Pollutant-free wastewater" means infiltration and inflow, storm waters, and cooling waters and condensates which are essentially free of pollutants.
15. "Severe property damage" means substantial physical damage to property, damage to treatment facilities which causes them to become inoperable, or substantial and permanent loss to natural resources which can reasonably be expected to occur in the absence of a "bypass". It does not mean economic loss caused by delays in production.
16. "Sludge" means the solids, residues, and precipitates separated from, or created in, wastewater by the unit processes of a treatment system.
17. "To significantly contribute" to a waste discharge requirement violation means an "indirect discharger" must:
 - a) Discharge a daily pollutant loading in excess of that allowed by contract with the discharger or by state or local law;
 - b) Discharge wastewater which substantially differs in nature or constituents from its average discharge;
 - c) Discharge pollutants, either alone or in conjunction with discharges from other sources, which results in a waste discharge requirement violation or prevents sludge use or disposal; or,
 - d) Discharge pollutants, either alone or in conjunction with pollutants from other sources, that increase the magnitude or duration of waste discharge requirement violations.
18. "Toxic waste" means any toxic and persistent waste which falls within the following categories:
 - a) PCB's
 - b) Pesticides
 - c) Toxic Metals
 - d) Cyanides

- e) Halogenated Organics
 - f) Non-halogenated volatile organics
19. "Upset" means an exceptional incident causing noncompliance with technology-based effluent limitations because of factors beyond the reasonable control of the discharger. It does not include noncompliance caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance, or careless or improper operation.